



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2082: childhood cancer research; commission

BLISS FLOOR AMENDMENT

1. Requires the Commission to award grants to health care providers and research institutions that are nonprofit organizations engaged in any clinical trials, rather than only phase 1 clinical trials, relating to research on pediatric cancer or other pediatric diseases.

BLISS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2082
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-121, Arizona Revised Statutes, is amended to
3 read:

4 36-121. Childhood cancer and rare childhood disease research
5 fund

6 A. The childhood cancer and rare childhood disease research fund is
7 established consisting of monies received pursuant to section 28-2442,
8 LEGISLATIVE APPROPRIATIONS, GIFTS, DONATIONS AND FEDERAL GRANTS. The
9 director shall administer the fund. Not more than ten ~~per cent~~ PERCENT of
10 monies deposited in the fund annually shall be used for the cost of
11 administering the fund. The first ~~thirty-two thousand dollars~~ \$32,000
12 received PURSUANT TO SECTION 28-2442 shall be reimbursed to the person or
13 entity that paid the implementation fee. Monies in the fund are
14 continuously appropriated. The director shall annually distribute monies
15 in the fund.

16 B. The director shall allocate monies from the fund ~~to health care~~
17 ~~providers and research institutions that are located in this state, that~~
18 ~~are nonprofit organizations and that are engaged in phase I clinical~~
19 ~~trials relating to research on pediatric cancer or other rare pediatric~~
20 ~~diseases. The monies may be used in a collaborative study or research~~
21 ~~program with other facilities outside of this state. Nonprofit~~
22 ~~organizations receiving monies from the fund shall use the monies for the~~
23 ~~purposes prescribed in this subsection even if the monies are aggregated~~

1 ~~with other monies~~ FOR THE GRANTS AWARDED BY THE CHILDHOOD CANCER AND RARE
2 CHILDHOOD DISEASE RESEARCH COMMISSION ESTABLISHED BY SECTION 36-121.01.

3 C. Monies in the fund are exempt from the provisions of section
4 35-190 relating to lapsing of appropriations.

5 Sec. 2. Title 36, chapter 1, article 1, Arizona Revised Statutes,
6 is amended by adding section 36-121.01, to read:

7 36-121.01. Childhood cancer and rare childhood disease
8 research commission; membership; reimbursement;
9 conflict of interest; annual report

10 A. THE CHILDHOOD CANCER AND RARE CHILDHOOD DISEASE RESEARCH
11 COMMISSION IS ESTABLISHED CONSISTING OF AT LEAST THE FOLLOWING MEMBERS WHO
12 ARE APPOINTED BY THE DIRECTOR:

13 1. ONE MEMBER WHO IS A SURVIVOR OF CHILDHOOD CANCER OR A CAREGIVER
14 TO INDIVIDUALS WHO HAVE CHILDHOOD CANCER.

15 2. ONE MEMBER WHO IS A SURVIVOR OF A RARE CHILDHOOD DISEASE OR A
16 CAREGIVER TO INDIVIDUALS WHO HAVE RARE CHILDHOOD DISEASES.

17 3. FOUR HEALTH PROFESSIONALS WHO PRACTICE IN THE FIELD OF EITHER
18 PEDIATRIC CANCER OR RARE CHILDHOOD DISEASES.

19 4. ONE MEMBER WHO REPRESENTS A NATIONWIDE PEDIATRIC CANCER ADVOCACY
20 NONPROFIT ORGANIZATION.

21 B. COMMISSION MEMBERS SHALL SERVE FIVE-YEAR TERMS AND SHALL
22 ANNUALLY ELECT A CHAIRPERSON FROM THE MEMBERSHIP. COMMISSION MEMBERS ARE
23 NOT ELIGIBLE TO RECEIVE COMPENSATION BUT ARE ELIGIBLE FOR REIMBURSEMENT OF
24 EXPENSES PURSUANT TO TITLE 38, CHAPTER 4, ARTICLE 2.

25 C. THE COMMISSION SHALL AWARD GRANTS TO HEALTH CARE PROVIDERS AND
26 RESEARCH INSTITUTIONS THAT ARE LOCATED IN THIS STATE, THAT ARE NONPROFIT
27 ORGANIZATIONS AND THAT ARE ENGAGED IN ~~[PHASE I]~~ CLINICAL TRIALS RELATING
28 TO RESEARCH ON PEDIATRIC CANCER OR OTHER RARE PEDIATRIC DISEASES. THE
29 MONIES AWARDED MAY BE USED IN A COLLABORATIVE STUDY OR RESEARCH PROGRAM
30 WITH OTHER FACILITIES OUTSIDE OF THIS STATE. NONPROFIT ORGANIZATIONS THAT
31 RECEIVE MONIES FROM THE FUND SHALL USE THE MONIES FOR THE PURPOSES
32 PRESCRIBED IN THIS SUBSECTION EVEN IF THE MONIES ARE AGGREGATED WITH OTHER
33 MONIES.

34 D. COMMISSION MEMBERS SHALL RECUSE THEMSELVES FROM DISCUSSING AND
35 VOTING ON ANY MATTER IN WHICH THEY HAVE A CONFLICT OF INTEREST. IF AT ANY
36 TIME COMMISSION MEMBER RECUSALS DUE TO CONFLICTS OF INTEREST CAUSE THE
37 COMMISSION TO NO LONGER HAVE A QUORUM TO TAKE OFFICIAL ACTION, THE
38 DIRECTOR OR THE DIRECTOR'S DESIGNEE AND OTHER DEPARTMENT STAFF MEMBERS

1 APPOINTED BY THE DIRECTOR MAY ACT AS MEMBERS OF THE COMMISSION ON ANY
2 GRANT APPLICATION AT ISSUE.

3 E. NOT LATER THAN AUGUST 1, 2027 AND AUGUST 1 OF EACH YEAR
4 THEREAFTER, THE COMMISSION SHALL SUBMIT A REPORT TO THE APPROPRIATIONS
5 COMMITTEES AND HEALTH AND HUMAN SERVICE COMMITTEES OF THE SENATE AND THE
6 HOUSE OF REPRESENTATIVES, OR THEIR SUCCESSOR COMMITTEES, DETAILING THE
7 NUMBER, AMOUNTS AND RECIPIENTS OF THE GRANTS AWARDED PURSUANT TO THIS
8 SECTION, THE RESULTING RESEARCH, THE RETURN ON INVESTMENT AND ANY OTHER
9 RELEVANT INFORMATION.

10 Enroll and engross to conform

11 Amend title to conform

SELINA BLISS

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